

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: June 01, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Kwak vs. Progeny Psychiatric Clinic 30-2025-01482453	<u>Motion to Strike</u> Defendant Progeny Psychiatric Clinic’s Motion to Strike Plaintiff’s Claim for Punitive Damages is GRANTED with 15 days leave to amend. <u>Pending Motion</u> Defendant Progeny Psychiatric Clinic moves to strike the request for punitive damages in Paragraph 14(a)(2) of Page 3 of the Complaint – Personal Injury, Property Damage, Wrong Death (Complaint) filed by Plaintiff Deborah Kwak. <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) However, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).)
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		"In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Striking Punitive Damages</u> To obtain punitive damages, a plaintiff must plead and prove one of the following: malice, oppression, or fraud. (See Civil Code, § 3294, subd. (a).) "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civil Code, § 3294, subd. (a)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civil Code, § 3294, subd. (a)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civil Code, § 3294, subd. (a)(3).) In order to survive a motion to strike, a complaint must not only allege in general terms oppression, fraud, or malice, but also plead ultimate facts in support. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim."], citations omitted.) Conduct carried on with a willful and conscious disregard of the rights or safety of others, but that is not "despicable," will not support an award of punitive damages. (<i>College Hospital Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 725.) "Despicable conduct" refers to circumstances that are so vile, base, or contemptible that it would be looked down on and despised by reasonable people. (<i>Ibid.</i>; <i>Scott v. Phoenix Schools, Inc.</i> (2009) 175 Cal.App.4th 702, 715.) Such conduct has been described as "having the character of outrage frequently associated with crime." (<i>Scott v. Phoenix Schools, Inc., supra</i>, 175 Cal.App.4th at p. 715.)
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		"Consequently, to establish malice, 'it is not sufficient to show only that the defendant's conduct was negligent, grossly negligent or even reckless.'" (<i>Bell v. Sharp Cabrillo Hospital</i> (1989) 212 Cal.App.3d 1034, 1044, quoting <i>Flyer's Body Shop Profit Sharing Plan v. Ticor Title Ins. Co.</i> (1986) 185 Cal.App.3d 1149, 1155.) "The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages. . . . Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210, citations and quotation marks omitted.) In addition, to recover punitive damages against a corporate defendant based on the acts of its employee, the plaintiff must plead facts showing that the employer "had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or [wrongful] act must be on the part of an officer, director, or managing agent of the corporation." (Civil Code, § 3294, subd. (b).) In this case, Plaintiff has filed a form Complaint that states "<i>each complaint must have one or more causes of action attached</i>" above the statement of Plaintiff's causes of action. (See Compl., ¶ 10, italics original.) Although Plaintiff checked the box indicating that she was asserting one cause of action for general negligence, Plaintiff failed to include the attachment for a general negligence cause of action. Thus, Plaintiff has failed to make out any causes of action for which punitive damages can be awarded. Further, Plaintiff failed to allege any facts to show that Defendant's conduct was malicious, oppressive, or fraudulent, or that an officer, director, or managing agent of the Defendant was directly involved in any wrongful conduct, or employed, authorized, or ratified any wrongful conduct. Therefore, the court will grant the motion to strike. <u>Leave to Amend</u>
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		In ruling on a motion to strike, the court employs the same liberality to amend as used for demurrers. As long as there is a reasonable possibility that plaintiffs can cure the defects, leave to amend is appropriate. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 168; <i>Price v. Dames & Moore</i> (2001) 92 Cal.App.4th 355, 360.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance. Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, although Plaintiff has not requested leave to amend and has not explained how the Complaint could be amended, the motion to strike is asserted against an original complaint and Plaintiff has not had a prior opportunity to amend the Complaint. Further, the deficiencies in the Complaint arise from the failure to plead sufficient allegations rather than deficiencies in the underlying facts that cannot be changed. The Complaint, for example, could be amended by including a form attachment for a general negligence cause of action and pleading facts to support a request for punitive damages. Therefore, the court will exercise its discretion and grant leave to amend.
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		However, the parties are reminded that when leave to amend is granted upon the sustaining of a demurrer or motion to strike, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Defendant shall give notice of this ruling.
2	Selski vs. Providence Mission Hospital Mission Viejo 30-2025-01513378	<u>Motion to Compel Arbitration</u> Defendant THC – Orange County, LLC's (erroneously sued as Kindred Hospital Brea) Motion to Compel Arbitration and Stay the Proceedings is taken OFF CALENDAR pursuant to the Stipulation to Arbitration Following Mediation and the Order thereon issued May 22, 2026 (ROA #64).
3	Hatter vs. Knott's Berry Farm, LLC 30-2025-01513936	<u>Demurrer</u> Defendants Knott's Berry Farm, LLC's and Cedar Fair, L.P. dba Cedar Fair Entertainment Company's (erroneously sued as Cedar Fair Entertainment Company) Demurrer to Plaintiff's Complaint is SUSTAINED with 15 days leave to amend as to the 2nd and 3rd Causes of Action. If Plaintiff Markeita Lemetrea Hatter does not amend the Complaint for Damages within the period of time stated above, Defendants Knott's Berry Farm, LLC and Cedar Fair, L.P. dba Cedar Fair Entertainment Company shall file an answer or other pleading in response to the remaining cause of action of the Complaint for Damages within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Defendants Knott's Berry Farm, LLC and Cedar Fair, L.P. dba Cedar Fair Entertainment Company (erroneously sued as Cedar Fair Entertainment Company) demur to the 2nd

		and 3rd Causes of Action of the Complaint for Damages (Complaint) filed by Plaintiff Markeita Lemetrea Hatter. <u>Standard on Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (<i>Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>2nd Cause of Action (Strict Product Liability) and 3rd Cause of Action (Negligent Products Liability)</u> "The elements of a strict products liability cause of action are a defect in the manufacture or design of the product or a failure to warn, causation, and injury." (<i>County of Santa</i>
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		<i>Clara v. Atlantic Richfield Co.</i> (2006) 137 Cal.App.4th 292, 318.) More specifically, the plaintiff must allege and prove the following: "(1) the product is placed on the market; (2) there is knowledge that it will be used without inspection for defect; (3) the product proves to be defective; and (4) the defect causes injury to a human." (<i>McCreery v. Eli Lilly & Co.</i> (1978) 87 Cal.App.3d 77, 83, disapproved on other grounds, <i>Sindell v. Abbott Laboratories</i> (1980) 26 Cal.3d 588, 614–615.) The elements of negligent products liability claim are: (1) the plaintiff was injured by a defect in the product; (2) the product was defective when it left the hands of the retailer or manufacturer; and (3) that the defect in the product was due to negligence of the defendant. (<i>Scott v. Metabolife Internat., Inc.</i> (2004) 115 Cal.App.4th 404, 415.) Defendants argue that the 2nd and 3rd Causes of Action fail because Defendants did not design, manufacture, or build the product at issue in this case – the Jaguar ride. However, the Complaint alleges that Defendants are liable for Plaintiff's injuries in "negligently and carelessly constructing, building, [] designing, [] buying, selling, [] manufacturing, maintaining [] the SUBJECT RIDE and/or each and every component part thereof . . ." (Compl., ¶ 9.) The Complaint also pleads that Defendants "manufactured, fabricated, designed, assembled, tested, distributed, sold, inspected, marketed, warranted, leased, rented, supplied, modified, provided, serviced, repaired, maintained and/or advertised the SUBJECT RIDE, which contained design and/or manufacturing defects . . ." (<i>Id.</i>, ¶ 15.) The Complaint further asserts that Defendants "negligently designed, engineered, developed, tested, approved, manufactured, fabricated, assembled, equipped, inspected, repaired, labeled, advertised, promoted, marketed, supplied, distributed, wholesaled, and sold the SUBJECT RIDE and its component parts . . ." (<i>Id.</i>, ¶ 21.) For purposes of this demurrer, the court must assume the truth of these allegations. Defendants also argue that Plaintiff fails to allege facts that show that Defendants are in the business of providing a product rather than a service.
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		However, for most causes of action, including the 2nd and 3rd Causes of Action here, the plaintiff need plead only ultimate facts, not evidentiary facts. (See <i>Ludgate Ins. Co. v. Lockheed Martin Corp.</i> (2000) 82 Cal.App.4th 592, 606 ["A cardinal rule of pleading is that only the ultimate facts need be alleged."].) Nonetheless, the Complaint fails to allege that the defects in the product caused injury to the Plaintiff, as required to make out both a strict products liability and negligent products liability cause of action. Instead, the Complaint asserts that "Laelen Moore," and not Plaintiff Markeita Lemetrea Hatter, was injured while riding the Jaguar ride. (See <i>id.</i>, ¶¶ 5, 10, 11, 16, 24.) Therefore, the court will SUSTAIN the demurrer to the 2nd and 3rd Causes of Action. <u>Leave to Amend</u> "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) At the same time, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) Here, Plaintiff has requested leave to amend and the demurrer is asserted against the original Complaint, so that Plaintiff has not had a prior opportunity to amend in response to a challenge by the Defendants. Thus, the court will exercise its discretion and grant leave to amend.
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		Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 15 days of service of the notice of ruling. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Defendants shall give notice of this ruling.
4	Bartlett Care Center, LLC vs. Olson 30-2025-0150649	<u>Demurrer</u> Defendants Theresa Jane Olson's and Joseph Russell Kenyon's Demurrer to the Complaint is OVERRULED as to the 1st, 3rd, and 4th Causes of Action, and SUSTAINED with 15 days leave to amend as to the 2nd Cause of Action. If Plaintiff Bartlett Care Center, LLC dba French Park Care Center does not amend the Complaint for Damages within the period of time stated above, Defendants Theresa Jane Olson and Joseph Russell Kenyon shall file an answer or other pleading in response to the remaining causes of action of the Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Defendant Theresa Jane Olson aka Theresa J. Olson aka Theresa Olson (Defendant Olson) and Defendant Joseph Russell Kenyon aka Joseph R. Kenyon aka Joseph Kenyon (Defendant Kenyon) demur to the 1st through 4th Causes of Action of the Complaint filed by Plaintiff Bartlett Care Center, LLC dba French Park Care Center. <u>Standard on Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in

		the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (<i>Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>1st Cause of Action (Breach of Written Contract)</u> "[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Here, the Complaint alleges that Defendant Olson breached the parties' written agreement, the California Standard Admission Agreement for Skilled Nursing Facilities and Intermediate Care Facilities, by failing to make the
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		payments required under the agreement. (See Compl. ¶¶ 6, 13.) Specifically, the Complaint alleges each element of the 1st Cause of Action, including the existence of a contract, (see Compl., ¶ 6, Exh. A); Plaintiff's performance, (see <i>id.</i>, ¶ 7); Defendant Olson's breach by failing to pay the amounts due under the contract, (see <i>id.</i>, ¶ 13); and damages to Plaintiff resulting from the breach, (see <i>ibid.</i>). Defendants contend that the Complaint does not allege sufficient facts to show the existence of the contract because the contract was electronically signed and the Complaint includes no factual allegations showing compliance with the Uniform Electronic Transactions Act, Civil Code, § 1633.1, <i>et seq.</i> (UETA). However, Defendants cite to no authority requiring a plaintiff to allege, at the pleading stage, specific facts supporting compliance with the UETA and this court is aware of none. For most causes of action, including a breach of contract cause of action, the plaintiff need plead only ultimate facts, not evidentiary facts. (See <i>Ludgate Ins. Co. v. Lockheed Martin Corp.</i> (2000) 82 Cal.App.4th 592, 606 ["A cardinal rule of pleading is that only the ultimate facts need be alleged."].) Defendants also demur pursuant to Civil Procedure Code section 430.10(g), which provides that a party may demur where "it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct." Here, the Complaint explicitly alleges that the contract is written and, in fact, attaches a copy. (See Compl., ¶ 6, Exh. A.) Therefore, the court will overrule the demurrer to the 1st Cause of Action. <u>2nd Cause of Action (Violation of Welf. & Inst. Code § 14110.8 – Failure to Pay Medi-Cal Share of Cost Obligation)</u> The Complaint alleges that "Defendant KENYON, as Defendant OLSON's Medi-Cal agent, is liable to Plaintiff for Defendant OLSON's unpaid Share of Cost obligation in the amount of \$62,984.50," pursuant to Welfare Institutions Code section 114110.8. (Compl., ¶ 16.) That statute provides:
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		A resident and their agent shall pay to the facility the long-term care patient liability, for which they are responsible under the Medi-Cal program, unless otherwise exempted by law. (See Welf. & Inst. Code, § 14110.8, subd. (f).) However, Section 14110.8 only provides for criminal liability for a violation of its provisions. (See Welf. & Inst. Code, § 14110.8, subd. (h) ["Any agent who willfully violates the requirements of this section is guilty of a misdemeanor, and upon conviction thereof, shall be punished by a fine not to exceed two thousand five hundred dollars (\$2,500) or by imprisonment in the county jail not to exceed 180 days, or both"].) Section 14110.8 does not create a private right of action. Further, Statutory causes of action must be pleaded with particularity. (<i>Covenant Care, Inc. v. Superior Court</i> (2004) 32 Cal.4th 771, 790.) A plaintiff "must set forth factual allegations that sufficiently state all required elements of [a] cause of action . . . and, [a]llegations must be factual and specific, not vague or conclusory." (<i>Rakestraw v. Cal. Physicians' Serv.</i> (2000) 81 Cal. App. 4th 39, 43.) Here, Plaintiff fails to allege any facts in support of this cause of action. Thus, the court will sustain the demurrer to the 2nd Cause of Action. <u>3rd Cause of Action (Open Book Account)</u> "The elements of an open book account cause of action are: '1. That [plaintiff] and [defendant] had financial transactions . . . ; [¶] 2. That [plaintiff] . . . kept [an] account of the debits and credits involved in the transactions; [¶] 3. That [defendant] owes [plaintiff] money on the account; and [¶] 4. The amount of money that [defendant] owes [plaintiff].'" (<i>State Comp. Ins. Fund v. ReadyLink Healthcare, Inc.</i> (2020) 50 Cal.App.5th 422, 449, quoting CACI No. 372.) "A book account is created by the agreement or conduct of the parties in a commercial transaction." (<i>H. Russell Taylor's Fire Prevention Serv., Inc. v. Coca Cola Bottling Corp.</i> (1979) 99 Cal.App.3d 711, 728.) In this case, the Complaint alleges that over the last two years, Defendant Olson became indebted to Plaintiff on an
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		open book account in the sum of \$62,984.50. (See Compl., ¶ 2.) Specifically, the Complaint pleads every element of an open book account cause of action, including that there was a financial transaction between the parties, (see <i>id.</i>, ¶¶ 6-7), that Plaintiff kept an account of the transactions, (see <i>id.</i>, ¶ 19), and that Defendant Olson owes Plaintiff the sum of \$62,984.50 on the account, (see <i>id.</i>, ¶ 21.) Accordingly, the court will overrule the demurrer to the 3rd Cause of Action. <u>4th Cause of Action (Quantum Meruit – for Reasonable Value of Services)</u> “The requisite elements of [a claim for] quantum meruit are (1) the plaintiff acted pursuant to ‘an explicit or implicit request for the services’ by the defendant, and (2) the services conferred a benefit on the defendant.” (<i>Port Medical Wellness, Inc. v. Connecticut General Life Insurance Co.</i> (2018) 153, 180, quoting <i>Day v. Alta Bates Medical Center</i> (2002) 98 Cal.App.4th 243, 249.) The request for services may be either “explicit or implicit,” (<i>Day v. Alta Bates Medical Center, supra</i>, 98 Cal.App.4th at p. 249), but there must be some evidence to show that “a recipient of services performed either requested or acquiesced in them”, (<i>Producers Cotton Oil Co. v. Amstar Corp.</i> (1988) 197 Cal.App.3d 638, 659). In general, the Complaint alleges that Plaintiff provided skilled nursing facility services to Defendant Olson and that Defendant Olson failed to pay Plaintiff for the reasonable and customary charge for those services. (See Compl., ¶ 27.) Specifically, the Complaint pleads each element of a quantum meruit cause of action, including that Defendant Olson requested Plaintiff perform services for her benefit, (see <i>id.</i>, ¶ 6); Plaintiff performed the services as requested, (see <i>id.</i>, ¶¶ 7, 24); Defendant Olson has not paid for those services, (see <i>id.</i>, ¶ 27), and the reasonable value of service provided is \$62,984.50, (see <i>ibid.</i>). Therefore, the court will overrule the demurrer to the 4th Cause of Action. <u>Uncertainty</u> “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery
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		procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) “[A] demurrer for uncertainty will not be sustained where the facts claimed to be uncertain or ambiguous are presumptively within the knowledge of the demurring party.” (<i>Ching v. Dy Foon</i> (1956) 143 Cal.App.2d 129, 136.) “[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.” (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695.) In addition, a demurrer for uncertainty must identify by line and page number, the language that creates the uncertainty. (<i>Fenton v. Groveland Community Services Dist.</i> (1982) 135 Cal.App.3d 797, 809, disapproved of on other grounds, <i>Katzberg v. Regents of University of California</i> (2002) 29 Cal.4th 300.) “Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty.” (<i>Fenton v. Groveland Community Services Dist.</i> (1982) 135 Cal.App.3d 797, 809, disapproved of on other grounds, <i>Katzberg v. Regents of University of California</i> (2002) 29 Cal.4th 300.) Here, the Complaint is not so poorly drafted that Defendants cannot reasonably respond. Further, Defendants fail to point to specific portions of the Complaint that are uncertain. Thus, the court will overrule the demurrer on this basis. <u>Leave to Amend</u> “It is an abuse of the trial court’s discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action.” (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) However, it is the plaintiff’s “burden to establish how the complaint can be amended to state a valid cause of action.” (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a
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		proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (<i>See Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) At the same time, “for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court’s denial of leave to amend constitutes an abuse of discretion unless the complaint ‘shows on its face that it is incapable of amendment.’” (<i>Eghtesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 [“Only rarely should a demurrer to an initial complaint be sustained without leave to amend.”].) Although Plaintiff has not sought leave to amend, the demurrer is asserted against the original Complaint, so that Plaintiff has not had a prior opportunity to amend in response to a challenge by the Defendants. Thus, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court’s ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (<i>See Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 [“It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.”].) Defendants shall give notice of this ruling.
5	Carlin vs. Reiser 30-2025-01454477	<u>Motion for Attorney’s Fees and Costs</u> Defendants Matthew Stein’s and Christina Yee’s Motion for Attorneys’ Fees and Costs re Defendants’ Anti-SLAPP Motion is GRANTED in part and DENIED in part. Plaintiff Gary R. Carlin is ORDERED to pay to Defendants Matthew Stein and Christina Yee attorney’s fees in the amount of \$17,770 and costs in the amount of \$60 within 30 days of receiving notice of this ruling. <u>Pending Motion</u>

		Defendants Matthew Stein and Christina Yee (Moving Defendants) move for an award of attorney's fees in the amount of \$19,270 and costs in the amount of \$2,889.08 against Plaintiff Gary R. Carlin pursuant to the Anti-SLAPP statute, Civil Procedure Code section 425.16, <i>et seq.</i> (Anti-SLAPP Statute). <u>Standard for Motion for Attorney's Fees</u> Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023) 94 Cal.App.5th 1050, 1081 ["Each party to an action must pay its own attorney fees unless a statute or contract requires the opposing party to pay them."].) For example, Civil Procedure Code section 425.16 states that "a prevailing defendant on a[n Anti-SLAPP] special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc., § 425.16, subd. (c)(1).) Under this provision, "any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees." (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131.) The purpose of the statute is "compensating the prevailing defendant for the undue burden of defending against litigation designed to chill the exercise of free speech and petition rights." (<i>Barry v. State Bar of California</i> (2017) 2 Cal.5th 318, 328.) <u>Prevailing Party</u> "The term 'prevailing defendant,' as used in section 425.16, subdivision (c)(1), is not defined, and it is unstated whether a defendant who prevails on some, but not all, of the claims challenged in his or her anti-SLAPP motion is entitled to fees and costs. (<i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 232.) "But as a general rule, a defendant who prevails in part in bringing a special motion to strike is entitled to fees and costs, subject to the trial court's determination of the appropriate amount awardable based upon the defendant's partial success." (<i>Ibid.</i>) Therefore, "a party need not succeed in striking every
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		challenged claim to be considered a prevailing party within the meaning of section 425.16." (<i>Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App.4th 328, 339.) Here, Moving Defendants were wholly successful with respect to their Special Motion to Strike as the court granted the motion in its entirety and as to each of the 8 Causes of Action of the Complaint. (See ROA #195.) Therefore, Moving Defendants were prevailing defendants entitled to an award of attorney's fees pursuant to Section 425.16. <u>Lodestar Calculation of Attorney's Fees</u> Normally, a court should use the lodestar method for calculating the amount of an award of attorney's fees, unless the statute authorizing attorney's fees provides for another method of calculation. (<i>Galbiso v. Orosi Pub. Util. Dist.</i> (2008) 167 Cal.App.4th 1063, 1089.) The Anti-SLAPP Statute does not provide another method of calculating reasonable attorney's fees so that the court may use the lodestar approach with respect to anti-SLAPP motions. (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at pp. 1135-1136.) When using this method, the court begins by determining the reasonable hours the prevailing party's attorney spent on the case and multiplying that number by the reasonable hourly rate. (See <i>Ketchum vs. Moses, supra</i>, 24 Cal.4th at pp. 1131-34 or <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131-1134; <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1321.) However, the prevailing party should not receive a "windfall" through an award of reasonable attorney's fees. (<i>Ketchum vs. Moses, supra</i>, 24 Cal.4th at p. 1132.) Thus, the prevailing party "bear[s] the burden of . . . documenting the appropriate hours expended and hourly rates." (<i>Computer Xpress, Inc. v. Jackson, supra</i>, 93 Cal.App.4th at p. 1020, quoting <i>Hensley v. Eckerhart</i> (1983) 461 U.S. 424, 437.) However, once an attorney has presented evidence of her or his actual time spent and hourly rate charged, the time and hourly rate are presumed to be reasonable. (<i>Mandel v. Lackner</i> (1979) 92 Cal.App.3d 747, 761; see <i>Horsford v Board of Trustees of California State University</i> (2005) 132 Cal.App.4th 359, 396 ["[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records
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		are erroneous."]; <i>Raining Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements"].) "As the trial court 'is in the best position to value the services rendered by the attorneys in his or her courtroom,' we leave it in the trial court's discretion to determine the amount of reasonable attorney fees and costs to award . . . under the lodestar method." (<i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613, 622, quoting <i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 437; see also <i>Ketchum v. Moses</i>, <i>supra</i>, 24 Cal.4th at p. 1132 ["The trial judge is 'the best judge of the value of professional services rendered in his court.'"].) <u>Reasonable Hourly Rate</u> The reasonable hourly rate is based on the reasonable market value of the attorney's services. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1094-1095 or <i>PLCM Group, Inc. v. Drexler</i>, <i>supra</i>, 22 Cal.4th at p. 1094-1095.) This standard applies regardless of how much the attorney actually charged the client. (See <i>ibid.</i>) Thus, the same reasonable hourly rate will apply whether the attorney charged nothing for their services, charged below-market or discounted rates, represented the client on a contingent fee basis, or are in-house counsel paid a fixed salary. To determine the reasonable market value of the legal services provided, the court must look to the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work. (See <i>Children's Hospital & Medical Center v. Bonta</i> (2002) 97 Cal.App.4th 740, 783; see also <i>PLCM Group v. Drexler</i>, <i>supra</i>, 22 Cal.4th at p. 1095 ["[The] reasonable hourly rate is that prevailing in the community for similar work."].) The party requesting fees has the initial burden of producing evidence sufficient to support the reasonableness of the billing rates requested. (See <i>Davis v. City of San Diego</i> (2003) 106 Cal.App.4th 893, 903.) If the moving party meets its burden, the burden shifts to the opposing party to produce admissible evidence sufficient to show that the rates requested are not reasonable. (See <i>Graciano v. Robinson Ford Sales, Inc.</i> (2006) 144 Cal.App.4th 140, 155 [finding court erred in reducing rates where evidence of reasonableness of rate
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		requested was undisputed].) "In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41, citations omitted; see also <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.) The value of legal services performed in a case is a matter of which the trial court has its own expertise. (<i>PLCM Group v. Drexler, supra</i>, 22 Cal.4th at p. 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (<i>Ibid.</i>) "It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court." (<i>Melnyk v. Robledo</i> (1976) 64 Cal.App.3d 618, 623.) Here, Moving Defendants request an attorney's fees award based on hourly rates of \$800 for Counsel Rinat Klier Erlich and \$500 for Counsel Jenni M. Raphelt. (See Decl. of Rinat Klier Erlich, Esq. (Erlich Decl.), ¶ 12.) Moving Defendants have presented evidence of the reasonableness of these requested hourly rates given Counsel's experience and background. (See <i>id.</i>, ¶¶ 15, 12.) The court must assume that these rates are reasonable and the burden then shifts to Plaintiff to produce evidence to the contrary. While Plaintiff objects to these hour rates, Plaintiff provides no evidence in support of his arguments. The court finds that the hourly rates requested by Moving Defendants to be reasonable, based both on the evidence presented and the court's own knowledge and familiarity with the relevant legal market. <u>Hours Reasonably Expended</u> "[A]s the parties seeking fees and costs, defendants 'bear[] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.' To that end, the court may require defendants to produce records sufficient to provide 'a proper basis for determining how much time was spent on particular
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		claims.” (<i>ComputerXpress, Inc. v. Jackson, supra</i>, 93 Cal.App.4th at p. 1020, quoting <i>Hensley v. Eckerhart</i>, <i>supra</i>, 461 U.S. at p. 437, fn. 12.) However, an attorney’s declaration, made under penalty of perjury, is sufficient to support an award of attorney’s fees under the Anti-SLAPP statute, even if the attorney did not submit billing records or invoices, particularly if the work described in the declaration was broken down by task, and generally could be verified by looking at the record. (<i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751, 784-786; <i>Cruz v. Fusion Buffet, Inc.</i> (2020) 57 Cal.App.5th 221, 237-238.) Further, once they are properly admitted, “the verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (<i>Horsford v. Board of Trustees</i> (2005) 132 Cal.App.4th 359, 396.) Nonetheless “[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended.” (<i>Donahue v. Donahue</i> (2010) 182 Cal.App.4th 259, 271-272.) As the Court of Appeal has explained: Although [] billing statements in support of a fee request form the “starting point” for determining the “hours reasonably expended” in a lodestar calculation, the trial court is not bound to accept these hours and may reduce them if it concludes the attorneys performed work unrelated to the anti-SLAPP motion, or represented work that was unnecessary or duplicative or excessive in light of the issues fairly presented. (<i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc., supra</i>, 6 Cal.App.5th at p. 441, quoting <i>Christian Research Institute v. Alnor, supra</i>, 165 Cal.App.4th at pp. 1324, 1326; see <i>Graham v. DaimlerChrysler Corp.</i> (2004) 34 Cal.4th 553, 579-580 [court need not include inefficient or duplicative efforts when awarding attorney’s fees].) Thus, the defendant may recover fees and costs “only for the motion to strike, not the entire litigation.” (<i>Christian Research Inst. v. Alnor, supra</i>, 165 Cal.App.4th at p. 1320.) As explained by the Court of Appeal:
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[A] fee award under the anti-SLAPP statute may not include matters unrelated to the anti-SLAPP motion, such as 'attacking service of process, preparing and revising an answer to the complaint, [or] summary judgment research.' . . . Similarly, the fee award should not include fees for 'obtaining the docket at the inception of the case' or 'attending the trial court's mandatory case management conference' because such fees 'would have been incurred whether or not [the defendant] filed the motion to strike.' . . . In short, the award of fees is designed to 'reimburs[e] the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit' . . . rather than to reimburse the defendant for all expenses incurred in the baseless lawsuit.

(569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc., *supra*, 6 Cal.App.5th at p. 433, citations omitted.)

Here, Moving Defendants have submitted the declaration of their Counsel, who attests under penalty of perjury that the following amount of time was spent on the Special Motion to Strike:

Counsel Rinat Klier Erlich	
Description	Hours
Review the complaint, interview the client, and decide on strategy throughout the preparation of the anti-SLAPP motion	1.6
Review and finalize the anti-SLAPP motion and prepare for filing	0.5
Finalize and revise the instant fee motion	0.3
Total	2.4

Counsel Jennie M. Raphelt	
Description	Hours
Draft the anti-SLAPP motion	15.6
Draft the mootness brief in support of the anti-SLAPP motion	3.7
Review and analyze Plaintiff's opposition to anti-SLAPP	1.5
Draft the reply in support of the anti-SLAPP motion	2.1
Prepare for and attend hearings regarding the anti-SLAPP	6.2
Review/analysis of the attorney fees and drafting this motion	1.7
Summary/preparation of the breakdown	0.5

		Preparing the worksheet for the post-dismissal memorandum of costs	4.0
		Anticipated time to review the opposition, research and draft the reply brief for the instant fee motion, and prepare for and appear at the oral argument	3.0
		Total	38.3
		Plaintiff contends, in general terms, that the Moving Defendants' evidence lacks detail, and includes fees not yet incurred and fees for tasks not directly related to the Special Motion to Strike. However, Plaintiff fails to point to any specific time entries in support of his arguments. In challenges to the reasonableness of the number of hours billed, "it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (<i>Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass'n</i> (2008) 163 Cal.App.4th 550, 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (<i>Ibid.</i>) Nonetheless, the court has reviewed the Moving Defendants' Counsel's declaration and finds that the following attorney's fees are not reasonable: • 2.0 hours of work performed (\$1,000) by Counsel Raphelt to prepare for and attend the hearing(s) regarding the Special Motion to Strike • 3.6 hours of work performed (\$1,800) by Counsel Raphelt to prepare the worksheet for the memorandum of costs; and • 1.0 hour of work performed (\$500) by Counsel Raphelt to review the opposition and draft the reply brief (as Moving Defendants only filed a short Notice of Non-Opposition rather than a Reply). The remainder of the attorney's fees requested by Moving Defendants are reasonable and should be included in the lodestar calculation. Therefore, the court will award reasonable attorney's fees in the amount of \$17,770 <u>Costs</u>	

		Generally, the prevailing party is entitled, as a matter of right, to recover costs in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); <i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29-30.) Civil Procedure Code section 1033.5 enumerates the specific costs that are recoverable by the prevailing party in a civil action. (See Code Civ. Proc, §§ 1032, subd. (b), 1033.5.) Section 1033.5 also provides that the court may award costs not expressly described in the statute for expenses that are "reasonably necessary to the conduct of the litigation" and are "reasonable in amount." (Code Civ. Proc, § 1033.5, subd. (c)(2)-(4).) While the trial court has discretion to decide whether a cost item was reasonably necessary, the trial court does not have discretion to award a cost item that is not statutorily authorized. (See <i>Ladas v. California State Auto. Ass'n</i> (1993) 19 Cal.App.4th 761, 774.) To recover costs, the prevailing party must file and serve a memorandum of costs "within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700(a).) If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass'n, supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 ["If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary."].) Here, Moving Defendants seek costs of \$2,889.08 for filing and motion fees. However, these costs do not appear to be proper on their face as Moving Defendants are entitled to costs related to the Special Motion to Strike and the filing fee for a motion is \$60,
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		In addition, Moving Defendants do not present any explanation or evidence in support of the their request for costs. Therefore, the court will award costs in the amount of \$60. Moving Defendants shall give notice of this ruling.
6	Sierra vs. General Motors LLC 30-2023-01325216	<u>Motion for Reconsideration</u> Defendant General Motors LLC's Motion to Reconsider and Set Aside the Court's February 9, 2026, Order Granting Plaintiff's Motion for An Order Awarding Attorneys' Fees, Costs, and Expenses is DENIED. <u>Pending Motion</u> Defendant General Motors LLC moves the court for reconsideration and to set aside its February 9, 2026 order granting Plaintiff Aaron John Serra's Motion for Attorney's Fees. <u>Standard for Reconsideration</u> Civil Procedure Code section 1008 states that: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may . . . make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Civil Proc. Code, § 1008, subd. (a), italics added.) The motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order". (<i>Ibid.</i>) In addition, a party may only seek reconsideration "based upon new or different facts, circumstances, or law." (<i>Ibid.</i>) Thus, a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon "new or different facts, circumstances or law." (<i>Gilbert v. AC Transit</i> (1995) 32 Cal.App.4th 1494, 1499.) Here, the only new fact that Defendant offers is that Defendant's Counsel received the court's February 9, 2026 order after the order was already entered.

		That is not a new fact that would change the court's ruling on the merits. An example of the type of new facts to which Section 1008 refers is evidence about the reasonable hourly rate or reasonable number of hours expended by Plaintiff's Counsel. Therefore, the court will deny the motion for reconsideration. <u>Standard to Set Aside</u> The Civil Procedure Code grants the court discretion to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) In addition, a motion for relief from default may also be based upon "an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).) Where the attorney provides the declaration described in Section 473(b), relief from default is mandatory "unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (<i>Ibid.</i>; see <i>Johnson v. Pratt & Whitney Canada, Inc.</i> (1994) 28 Cal.App.4th 613, 622-623 [trial court could deny a motion for mandatory relief if it finds the attorney's declaration lacked credibility].) However, mandatory relief is limited to setting aside "any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client." (Code Civ. Proc., § 473, subd. (b).) The mandatory provision is narrower "insofar as it is only available for defaults, default judgments, and dismissals, while discretionary relief is available for a broader array of orders." (<i>Martin Potts & Associates, Inc. v. Corsair, LLC</i> (2016) 244 Cal.App.4th 432, 438.) Here, Defendant relies on the declaration of its counsel and the mandatory provision of Section 473(b), but seeks to set aside an order granting attorney's fees and not a default, default judgment, or dismissal. Thus, Section 473(b) does not grant the court the authority to set aside the February 9, 2026 Order under the circumstances of this motion.
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	Further, the Court of Appeal has held that: It is obvious that a party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself [or herself] or of his [or her] counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he [or she] seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he [or she] is entitled to it, and the assumption of this burden necessarily requires the production of evidence. (<i>Hewins v. Walbeck</i> (1943) 60 Cal.App.2d 603, 609-610.) Thus, in a motion to set aside a default judgment or order under Section 473(b), the initial burden is on the moving party to prove mistake, inadvertence, surprise, or excusable neglect by a "preponderance of the evidence." (<i>Kendall v. Baker</i> (1988) 197 Cal.App.3d 619, 624.) In this case, Defendant has not shown that the issuance of the February 9, 2026 Order occurred due to mistake, inadvertence, surprise, or neglect on the part of Defendant's Counsel. As the court indicated in its February 9, 2026, it reviewed and analyzed the evidence, and based on the court's knowledge and familiarity with the relevant legal market and the experience, skill, and reputation of Plaintiff's Counsel, the court found that the hourly rates requested were reasonable. The court also determined that the hours expended were reasonable given the difficulty or complexity of this litigation. Even if there had been no mistake, inadvertence, surprise, or neglect by Defendant's Counsel, the only consequence would have been the Defendant's Counsel filed a timely opposition. Defendant has not presented any evidence or argument that the court would not have issued the February 9, 2026 order (or issued a different version of the February 9, 2026 order) if a timely opposition had been filed. Therefore, the court will deny the motion to set aside. Plaintiff shall give notice of this ruling.
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7	Harpel vs. New Orange Hills, Inc. 30-2025-01499188	<u>Motion to Compel Arbitration and Joinder</u> The court has no written tentative ruling at this time and will hear from the parties or their counsel. The court has heard and carefully considered all the arguments made with respect to the motion to compel arbitration brought in <i>Verrigni v. New Orange Hills, Inc.</i> , Case Number 2025-01486638, and will issue a ruling shortly. The parties and counsel need not repeat in detail all the arguments made in that case. However, they should focus on the ways in which the evidence and arguments in this case are the same or different than in <i>Verrigni v. New Orange Hills, Inc.</i> They also should clarify any ambiguities in the arguments in that case or this case.
8	Var vs. New Orange Hills, Inc. 30-2025-01486640	<u>Motion to Compel Arbitration and Joinder</u> The court has no written tentative ruling at this time and will hear from the parties or their counsel. The court has heard and carefully considered all the arguments made with respect to the motion to compel arbitration brought in <i>Verrigni v. New Orange Hills, Inc.</i> , Case Number 2025-01486638, and will issue a ruling shortly. The parties and counsel need not repeat in detail all the arguments made in that case. However, they should focus on the ways in which the evidence and arguments in this case are the same or different than in <i>Verrigni v. New Orange Hills, Inc.</i> They also should clarify any ambiguities in the arguments in that case or this case.
9	Clasby vs. City of Seal Beach 30-2025-01516539	<u>Demurrer</u> Defendant City of Seal Beach's Demurrer to the Third through Sixth Causes of Action in Plaintiff's Complaint is OVERRULED as to the 3rd, 4th, and 5th Causes of Action,

		and SUSTAINED with 15 days leave to amend as to the 6th Cause of Action. If Plaintiff Julia Clasby does not amend the Complaint within the period of time stated above, Defendant City of Seal Beach shall file an answer or other pleading in response to the remaining causes of action of the Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) Defendant City of Seal Beach's Request for Judicial Notice in Support of Demurrer to the Third through Sixth Causes of Action in Plaintiff's Complaint is GRANTED as to Exhibits A and B. (See Evid. Code, § 452, subd.s (c), (d), (h).) <u>Pending Motion</u> Defendant City of Seal Beach demurs to the 3rd through 6th Causes of Action of the Complaint filed by Plaintiff Julia Clasby. <u>Standard on Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (<i>Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.)
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		Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>Claims Occurring Three years Before Plaintiff's October 2, 2025 Civil Rights Department Complaint</u> Defendant first contends that, before filing a civil action alleging violations of the Fair Employment and Housing Act (FEHA), an employee must exhaust their administrative remedies by filing an administrative complaint with the Civil Rights Department (CRD). Further, the employee must file their administrative complaint with the CRD within 3 years of the date upon which the unlawful conduct occurred. (See Gov. Code, § 12960, subd. (e).) Defendant points to the fact that Plaintiff did not file an administrative complaint with the CRD until October 2, 2025, (see Def.'s Request for Judicial Notice in Supp. of Dem. to the Third through Sixth Causes of Action in Pltf.'s Compl. (RJN), Exh. A), so that Plaintiff cannot base her claims on any unlawful conduct that occurred more than three years before that date or October 2, 2022. However, "[a] demurrer must dispose of an entire cause of action to be sustained." (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 119.) "Thus, a court must overrule a demurrer to a cause of action if it is based on at least one viable theory of liability." (<i>Thompson v. Spitzer</i> (2023) 90 Cal.App.5th 436, 452; see also <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1681 ["[A] party may not demur to a portion of a cause of action."].) Therefore, where a cause of action is based on illegal actions that occurred both before and after October 2, 2022, the court cannot sustain the demurrer. Here, Defendant fails to point to any cause of action based <i>entirely</i> on unlawful conduct that occurred prior to October 2, 2022.
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		Therefore, the court will overrule the demurrer on this basis. <u>3rd Cause of Action [Unlawful Harassment Because of Sex / Gender (Cal. Gov. Code §§ 12923, 12940(a) and (j))]</u> As the Supreme Court has explained: With certain exceptions not implicated here, the FEHA makes it an unlawful employment practice for an employer, "because of the . . . sex . . . of any person, . . . to discriminate against the person in compensation or in terms, conditions, or privileges of employment." (§ 12940, subd. (a).) Likewise, it is an unlawful employment practice for an employer, "because of . . . sex, . . . to harass an employee." (§ 12940, subd. (j)(1).) Under the statutory scheme, "'harassment' because of sex" includes sexual harassment and gender harassment. (§ 12940, subd. (j)(4)(C).) (<i>Lyle v. Warner Brothers Television Productions</i> (2006) 38 Cal.4th 264, 277.) "[T]he prohibition against sexual harassment includes protection from a broad range of conduct, ranging from expressly or impliedly conditioning employment benefits on submission to or tolerance of unwelcome sexual advances, to the creation of a work environment that is hostile or abusive on the basis of sex." (<i>Miller v. Department of Corrections</i> (2005) 36 Cal.4th 446, 461.) "To establish a prima facie case of a hostile work environment, [a plaintiff] must show that (1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on her protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment." (<i>Ortiz v. Dameron Hospital Assn.</i> (2019) 37 Cal.App.5th 568, 581.) "[T]he harassment complained of must be 'sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment' 'The plaintiff must prove that the defendant's conduct would have interfered with a reasonable employee's work performance and would have seriously affected the psychological well-being of a reasonable employee and that she was actually offended.' '[H]arassment cannot be occasional, isolated, sporadic, or trivial[;] rather the plaintiff must show a concerted pattern of harassment of a repeated, routine or a
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		generalized nature.” (<i>Aguilar v. Avis Rent A Car System, Inc.</i> (1999) 21 Cal.4th 121, 130-131, disapproved on other grounds, <i>Bailey v. San Francisco District Attorney’s Office</i> (2024) 16 Cal.5th 611, 631, fn.6, quoting <i>Fisher v. San Pedro Peninsula Hospital</i> (1989) 214 Cal.App.3d 590, 608-610.) However, a single incident can constitute actionable harassment if it is sufficiently severe. (<i>Etter v. Veriflo Corp.</i> (1998) 67 Cal.App.4th 457, 467; see also <i>Bailey v. San Francisco District Attorney’s Office, supra</i>, 16 Cal.5th at p. 631, fn.6 [“The isolated use of an unambiguous racial epithet may be sufficiently severe to create a hostile work environment based on the totality of the circumstances surrounding its use. In other words, it does not require something more; rather, it requires full consideration of the use of the epithet itself, including but not limited to the specific word or words used, the speaker, whether it was directed at the plaintiff, and the larger social context of the workplace.”].) An entity defendant is liable “if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action.” (<i>Martin v. Board of Trustees of California State University</i> (2023) 97 Cal.App.5th 149, 170, quoting Gov. Code, § 12940, subd. (j)(1).) In this case, the Complaint generally alleges Police Chief Michael Henderson sabotaged Plaintiff’s career advancement opportunities. (Compl., ¶ 106.) For example, the Complaint pleads that Henderson directed Plaintiff to prepare a list of her weaknesses to include in Plaintiff’s performance review, while a male counterpart did not have to make a list of deficiencies. (See <i>ibid.</i>) The Complaint also asserts that, despite Plaintiff testing significantly better, Henderson chose a less-qualified for Captain in Fall 2022, and that when Henderson announced that Plaintiff’s male peer had been chosen to be a Captain, Henderson warned Plaintiff that she would be competing with a newly-promoted, less-qualified male Lieutenant the next time she applied for a Captain position. (See <i>id.</i>, ¶¶ 107-108.) The Complaint further alleges that Henderson insinuated that it would be bad optics to send Plaintiff and a male subordinate to attend an out-of-state training conference and instead, sent two men to conference. (See <i>id.</i>, ¶ 109.) The Complaint goes on to plead that Henderson twice instructed Plaintiff to make travel arrangements for the
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		attendees instead of asking support staff to arrange the travel. (See <i>id.</i>, ¶¶ 123-124.) The Complaint asserts that, when Plaintiff requested authorization to attend the Crime Prevention Through Environmental Design (CPTED) training, Henderson denied the request and suggested a course targeted to lower-level personnel. (See <i>id.</i>, ¶¶ 126-127.) Similarly, it is alleged that Henderson denied Plaintiff's request to attend the USC Public Safety Leadership Program, claiming that he did not like the "optics" of Plaintiff attending the program, even though men in the Command Staff had been approved to attend a similar program for which the Seal Beach Police Department had paid and allowed them to attend as compensated time. (See <i>id.</i>, ¶¶ 127-129.) Additionally, the male Marine Safety/Lifeguard Chief attended the same USC program, paid for by Defendant on city time. (See <i>id.</i>, ¶ 129.) Furthermore, the Complaint asserts that a male Sergeant compared Plaintiff's professional attire to that of a male Lieutenant who is usually out of uniform and "is seen as more 'relatable and casual.'" (<i>Id.</i>, ¶ 113.) At the same time, Henderson is alleged to have disparagingly noted Plaintiff's attire when she was wearing sweatpants. (See <i>id.</i>, ¶ 115.) The Complaint also pleads that another male Sergeant said to Plaintiff, "You're a female who promoted quickly and everyone is either jealous or threatened." (<i>Id.</i>, ¶ 117.) The Complaint then asserts that after a meeting with male Sergeants, a male supervisory employee stated to Plaintiff, "Let's just address the elephant in the room – you are a woman who will have to work twice as hard for half the respect and people are threatened by your success because they think you promoted too quickly." (<i>Id.</i>, ¶ 118.) The Complaint alleges that Henderson also routinely, unexpectedly entered Plaintiff's office, using a master key if needed, but did not engage in similar conduct with male members of the Command Staff. (See <i>id.</i>, ¶ 144.) These allegations are sufficient to make out that Plaintiff was a member of a protected class who was subjected to unwelcome harassment on the basis of her membership in the protected class. The Complaint also pleads that the harassing conduct is severe and pervasive, and creates a hostile, intimidating, offensive, oppressive, and abusive work environment that has caused Plaintiff harm, and that Defendant is
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		responsible for such harassing conduct. (See <i>id.</i>, ¶¶ 195-197.) These allegations are sufficient to make out a cause of action for harassment based on sex or gender under FEHA. Defendant contends that the Complaint does not identify which specific allegations Plaintiff relies upon to support her claim of sex or gender harassment. However, Defendant points to no authority for the proposition that Plaintiff is required to do so. Defendant can obtain such information through discovery. Defendant also argues that the Complaint alleges isolated incidents by different individuals that are not all directed at Plaintiff. However, whether unlawful conduct was directed at Plaintiff cannot be determined at this stage. Instead, the court is required to assume the truth of all allegations that have been properly pleaded. As noted above, these allegations are sufficient to support a cause of action for sex or gender harassment. Therefore, the court will overrule the demurrer to the 3rd Cause of Action. <u>4th Cause of Action [Unlawful Failure to Take All Reasonable Steps Necessary to Prevent Harassment Because of Sex / Gender (Cal. Gov. Code §§ 12923, 12940(a), (j)(1) and (k))]</u> The Fair Employment and House Act (FEHA) provides that it is an unlawful employment practice: "(k) For an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring." (Gov. Code, § 12940, subd. (k).) Section 12940(k) "creates a separate actionable tort enforceable upon the establishment of the usual tort elements of duty of care, breach of duty (a negligent act or omission), causation, and damages." (<i>Dickson v. Burke Williams, Inc.</i> (2015) 234 Cal.App.4th 1307, 1313.) Such a claim requires a plaintiff to prove: (1) he or she was an employee; (2) subject to harassment/discrimination/retaliation in the course of employment; (3) the employer failed to take all reasonable steps to prevent the harassment/discrimination/retaliation;
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		(4) the plaintiff was harmed; and (5) the employer's failure to take all reasonable steps to prevent harassment/discrimination/retaliation was a substantial factor in causing the plaintiff's harm. (See CACI 2527.) Defendant points to the fact that a cause of action for failure to prevent discrimination or harassment is contingent upon a viable claim of discrimination or harassment. (See <i>Dickson v. Burke Williams, Inc.</i>, <i>supra</i>, 234 Cal.App.4th at p. 1314.) Defendant contends that since the harassment claim fails, the failure to prevent harassment claim must also fail. However, for the reasons explained above, the Complaint sufficiently alleges a cause of action for sexual harassment. Thus, the derivative failure to prevent sexual harassment claim survives Defendant's demurrer. The court will overrule the demurrer to the 4th Cause of Action. <u>5th Cause of Action [Unlawful Employment Discrimination Because of Pregnancy and Childbirth (Cal. Gov. Code §§ 12940(a), 12926(r))]</u> FEHA prohibits an employer from discriminating against any person in terms, conditions, or privileges of employment because of the person's sex, which includes pregnancy or medical conditions related to pregnancy. (Gov't Code, §§ 12926, subd. (r)(1), 12940, subd. (a).) A plaintiff may show discrimination based on one of two theories: "Disparate treatment" is intentional discrimination against one or more persons on prohibited grounds. Prohibited discrimination may also be found on a theory of "disparate impact," i.e., that regardless of motive, a facially neutral employer practice or policy, bearing no manifest relationship to job requirements, in fact had a disproportionate adverse effect on members of the protected class. (<i>Guz v. Bechtel National, Inc.</i> (2000) 24 Cal.4th 317, 354, fn.20, citations omitted.) In order to establish a prima facie case of disparate treatment discrimination under FEHA, the plaintiff must show "that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as
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		termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (<i>Id.</i> at p. 355.) A plaintiff must demonstrate that her protected characteristic, such as pregnancy or childbirth, was a substantial motivating factor in the challenged employment decision. (<i>Harris v. City of Santa Monica</i> (2013) 56 Cal.4th 203, 231-32.) Here, the Complaint alleges that in 2015, when Plaintiff was pregnant with her first child, several male Sergeants discussed her pregnancy during a monthly management meeting and, in derogatory terms, stated words to the effect of “typical female, just got here, immediately pregnant, going on light duty.” (Compl., ¶ 59.) The Complaint also pleads that, in February 2020, Plaintiff went into then-Commander Henderson’s office and advised him that she was pregnant and that Henderson then responded, “Nooooooooo.” (See <i>id.</i>, ¶ 77.) The Complaint goes on to assert that in August 2022, Plaintiff learned that prior to her being promoted to Lieutenant, during the selection process, then-Captain Henderson contacted the then-City Human Resources Director and inquired if Henderson was allowed to ask Plaintiff if she planned on having any more children. (See <i>id.</i>, ¶ 103.) The Complaint further asserts that in the Fall of 2022, Henderson promoted Plaintiff’s male, unmarried, and childless counterpart to Captain even though Plaintiff was “the significantly more qualified candidate in numerous respects.” (<i>Id.</i>, ¶¶ 105, 107.) A plaintiff may support allegations of discriminatory motive on the basis of age by making out that she or he were replaced by a significantly younger person. (<i>Hoglund v. Sierra Nevada Memorial-Miners Hospital</i> (2024) 102 Cal.App.5th 56, 74.) Similarly, Plaintiff can make out a claim of discrimination by alleging that she is a woman who had been pregnant, that she was qualified to become Captain, that she was not promoted to Captain, and that a person who had never been and could not become pregnant in the future received the promotion instead of her, suggesting a discriminatory motive. Defendant argues that the Complaint fails to plead that any adverse employment action was taken against Plaintiff due to her pregnancies. However, the Complaint alleges that
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		she was not promoted and that a person who had never been and could not become pregnant was promoted even though he was less qualified. Defendant also claims that there were no allegations of discrimination due to pregnancy that are alleged to have occurred within the statutory limitations period. Here, the Complaint only alleges that the promotion process to become Captain occurred “[i]n the Fall of 2022.” (Compl., ¶ 105.) It does not state when the male candidate was chose to become Captain. (See <i>id.</i>, ¶ 107.) From the face of the Complaint, it cannot be said that the discriminatory actions occurred prior to October 2, 2022. (fn.1) (fn.1) Defendant may determine the exact dates that the allegedly discriminatory conduct occurred and may seek to challenge this cause of action if it can show that the selection of the male candidate occurred prior to October 2, 2022. In the alternative, the fact that Plaintiff was qualified to become Captain but was not promoted and a male candidate was selected instead creates a presumption of discrimination, but that presumption is rebuttable. (See <i>Guz v. Bechtel National, Inc.</i>, <i>supra</i>, 24 Cal.4th at p. 354-355.) Defendant may “rebut the presumption by producing admissible evidence, sufficient to ‘raise[] a genuine issue of fact’ and to ‘justify a judgment for the [employer],’ that its action was taken for a legitimate, nondiscriminatory reason.” (<i>Id.</i> at pp. 355-356.) Accordingly, the court will overrule the demurrer to the 5th Cause of Action. <u>6th Cause of Action [Unlawful Retaliation (Cal. Gov. Code § 12940(h))]</u> “To establish a prima facie case of retaliation, ‘a plaintiff must show (1) he or she engaged in a “protected activity,” (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action.’” (<i>Zamora v. Security Industry Specialists, Inc.</i> (2021) 71 Cal.App.5th 1, 63, citing <i>Yanowitz v. L'Oreal USA, Inc.</i> (2005) 36 Cal.4th 1028, 1042.) In the Complaint, Plaintiff alleges that sometime in or after 2020, Plaintiff made a verbal and written complaint against a Sergeant alleging that he had made improper comments related to her gender and pregnancy, which eventually lead to the Sergeant’s demotion and retirement. (See Compl., ¶¶ 79-99.)
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		The Complaint also pleads that, on March 13, 2025, Plaintiff submitted a formal complaint to the Seal Beach City Manager. (See Compl., ¶ 132.) In the 2025 formal complaint, Plaintiff asserted that “Henderson had engaged in ‘unequal and discriminatory treatment’ toward [Plaintiff], that Henderson ‘refuses to provide her similar training and opportunities as her male counterparts simply based on her gender.’” (<i>Ibid.</i>) The Complaint pleads that, in the Spring of 2025, an Internal Affairs proceeding was opened to investigate claims that Plaintiff had made disparaging comments about Henderson and that Henderson had authorized the investigation without consulting his Captains, which is outside the normal Internal Affairs protocol. (See <i>id.</i>, ¶ 141.) The Complaint alleges that Henderson also mulled over and threatened numerous other investigations and alleged policy violations against Plaintiff. (See <i>id.</i>, ¶ 143.) Defendant contends that the Complaint fails to allege that any adverse employment action was taken as a result of Plaintiff’s protected activity. Defendant points to <i>St. Myers v. Dignity Health</i> (2019) 44 Cal.App.5th 301, in which the Court of Appeal ruled that the plaintiff had failed to show that an adverse employment action was taken against her even though she pointed to “the manipulation of her schedule, the false allegations against her and resulting investigations, the spreading of rumors based on these false allegations, and the requirements that she practice below the standard of care.” (<i>Id.</i> at p. 318.) Here, Plaintiff has similarly failed to allege that any adverse employment action was taken against her as a result the complaints she made. The fact that an Internal Affairs investigation was opened, without more, is insufficient under <i>St. Myers v. Dignity Health</i>. Therefore, the court will sustain the demurrer to the 6th Cause of Action. <u>Leave to Amend</u> “It is an abuse of the trial court’s discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action.” (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.)
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	However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (<i>See Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) At the same time, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) In this case, Plaintiff seeks leave to amend and the demurrer is asserted against the original Complaint, so that Plaintiff has not had a prior opportunity to amend in response to a challenge by the Defendant. Thus, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (<i>See Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) <u>Motion to Strike</u> Defendant City of Seal Beach's Motion to Strike Portions of Plaintiff's Complaint is DENIED. <u>Pending Motion</u> Defendant City of Seal Beach moves to strike Paragraphs 25-34 and 48-58 of the Complaint filed by Plaintiff Julia Clasby.
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		<u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) However, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).) “In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation.” (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Paragraphs 25-34 and 48-58</u> Defendant contends that Paragraphs 25-34 and 48-58 of the Complaint should be stricken because they are irrelevant allegations about 1) the history of the Seal Beach Police Department from the 1970s, 2) general statistics about the representation of women in law enforcement,
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	and 3) Plaintiff's experiences at other law enforcement agencies before she joined the City of Seal Beach. Specifically, Paragraphs 25-34 of the Complaint contain information about the history of the Seal Beach Police Department's treatment of its female employees, including a focus on gender discrimination. Paragraphs 48-51 cite to statistics and quote a study discussing the benefits of women working in law enforcement. Finally, Paragraphs 52-53 allege facts about Plaintiff's experiences in law enforcement prior to working for the Seal Beach Police Department while paragraphs 54-58 contain allegations concerning the culture at the Seal Beach Police Department in general. As noted above, courts must construe pleadings liberally with a view to substantial justice, and must read the allegations of the complaint as a whole and in context. The challenged allegations provide historical or background context and contribute to a full understanding of Plaintiff's Complaint as a whole. The challenged allegations are not so irrelevant, false, or improper as to warrant striking them from the pleading. Further, the Defendant has not pointed to any undue prejudice that arises from these allegations. Defendant argues that the allegations are prejudicial in that they introduce unnecessary issues and impose a burden by requiring additional discovery and research work. However, if Defendant has determined that an allegation is irrelevant, then it can take appropriate action and reduce the resources to be expended on that allegation. In any case, it is inherent in all civil litigation that the parties must decide which issues they will choose to spend their limited resources. The fact that the court has chosen not to strike the challenged allegations at this early stage in the litigation does not mean that the court will allow evidence regarding these allegations at trial. Any prejudice may be avoided by excluding some or all such evidence at trial. Therefore, the court will deny the motion to strike. Defendant shall give notice of these rulings.
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10	Hughes vs. Orange County 30-2023-01313697	<u>Demurrer</u> Defendants Orange County's, Orange County Sheriff's Department's, and Jessica Capitulo's Demurrer to Plaintiff's Fourth Amended Complaint is SUSTAINED without leave to amend as to the 1st, 2nd, 4th, and 5th Causes of Action, and SUSTAINED with 15 days leave to amend as to the 3rd and 6th Causes of Action. For clarity, the 6th Cause of Action stands against Defendants Orange County and Orange County Sheriff's Department, and the 1st through 6th Causes of Action stand against Defendant Tiffany Williams. If Plaintiff Albert Hughes III does not amend the 4th Amended Complaint within the period of time stated above, Defendants Orange County and Orange County Sheriff's Department shall file an answer or other pleading in response to the remaining cause of action of the 4th Amended Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j).) <u>Pending Motion</u> Defendant Orange County (Defendant OC), Defendant Orange County Sheriff's Department (Defendant OCSD), and Defendant Jessica Capitulo (Defendant Capitulo) demurs to the entirety of the Fourth Amended Complaint for Damages (4AC) filed by Plaintiff Albert Hughes III, as well as the 1st through 6th Causes of Action of the 4AC. <u>Timeliness of Reply</u> As an initial matter, Plaintiff objects that Defendants' reply was filed late. (See ROA #590.) However, Defendants' reply papers were filed and served on May 22, 2026, which is 5 court days before the hearing and therefore timely. (See ROA #588; Code Civ. Proc., s 1005, subd. (b) ["All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing.].) Further, Plaintiff does not point to any prejudice that he suffered.

		Therefore, the court will overrule the objection and consider Defendants' reply papers. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (<i>Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>1st Cause of Action (Violation of the Tom Bane Civil Rights Act)</u> The 1st Cause of Action for Violation of the Tom Bane Civil Rights Act is asserted against only Defendant Capitulo and Defendant Tiffany Williams.
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		improperly altering and destroying Plaintiff's property [death investigation files] in an effort to deprive Plaintiff of his interest and rights." (4AC, ¶ 44.) While Plaintiff uses the word "violently" in this allegation, when read in context, it is clear that the violence, if any, was done to the investigation files and not to Plaintiff. Thus, this allegation is insufficient to make out any interference by way of threat, intimidation, or coercion to Plaintiff, as the Tom Bane Act requires. Plaintiff also contends that the 4AC pleads that "Defendants threatened and intimidated Plaintiff with sanctions in an effort to deprive Plaintiff of his interests and rights to Serette's death investigatory files." (4AC, ¶ 45) When this paragraph is read is read in its entirety, it is clear that this refers to statements that Defendants made that they would seek sanctions in legal proceedings. These are not the kinds of threats, intimidation, or coercion that the Tom Bane Act is intended to protect against and they are, in any case, protected by the Litigation Privilege. (See Civil Code, § 47; <i>Rubin v. Green</i> (1993) 4 Cal.4th 1187, 1193 ["[C]ommunications with 'some relation' to judicial proceedings have been absolutely immune from tort liability by the privilege codified as section 47(b)."].) Further, the 4AC fails to allege, with the specificity required for a statutory violation, that Defendant Capitulo made any threats or committed any acts of intimidation or coercion. The court will sustain the demurrer to the 1st Cause of Action as to Defendant Capitulo. <u>2nd Cause of Action (Intentional Infliction of Emotional Distress), 4th Cause of Action (Conversion), and 5th Cause of Action (Trespass to Chattels)</u> These causes of action are asserted against all Defendants. <u>Defendant OC and Defendant OCSD</u> The court previously sustained the demurrer of Defendant OC and Defendant OCSD to the 2nd, 4th, and 5th Causes of Action <i>without leave to amend</i>. (See ROA #336.) Therefore, it is improper for Plaintiff to reassert these claims against Defendant OC and Defendant OCSD in the 4AC.
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		For this reason, the court will sustain the demurrer to the 2nd, 4th, and 5th Causes of Action as to Defendant OC and Defendant OCSD. <u>Defendant Capitulo</u> "It is a well-settled rule that 'there is no common law governmental tort liability in California; and except as otherwise provided by statute, there is no liability on the part of a public entity for any act or omission of itself, a public employee, or any other person.'" (<i>Green Valley Landowners Assn. v. City of Vallejo</i> (2015) 241 Cal.App.4th 425, 441–442, quoting <i>Cowing v. City of Torrance</i> (1976) 60 Cal.App.3d 757, 761.) Specifically, Government Code section 815 states: Except as otherwise provided by statute: (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person. (Gov. Code, § 815.) As the Court of Appeal has explained: [B]ecause under the Tort Claims Act all governmental tort liability is based on statute, the general rule that statutory causes of action must be pleaded with particularity is applicable. Thus, "to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity." (<i>Lopez v. Southern Cal. Rapid Transit Dist.</i> (1985) 40 Cal.3d 780, 795, quoting <i>Peter W. v. San Francisco Unified School Dist.</i> (1976) 60 Cal.App.3d 814, 819; <i>Soliz v. Williams</i> (1999) 74 Cal.App.4th 577, 585.) In addition, a complaint must allege "a mandatory statutory duty as required by Government Code section 815." (<i>Cochran v. Herzog Engraving Co.</i> (1984) 155 Cal.App.3d 405, 410, fn.2.) Where "[n]either [the] complaint actually alleges any duty on the part of the City . . . nor . . . any facts in support of the purported duties," the complaint is subject to demurrer. (<i>Ibid.</i>) The Court of Appeal has specifically held that: Duty cannot be alleged simply by stating "defendant had a duty under the law"; that is a conclusion of
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		law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged. Since the duty of a governmental agency can only be created by statute or "enactment," the statute or "enactment" claimed to establish the duty must at the very least be identified. (<i>Searcy v. Hemet Unified School Dist.</i> (1986) 177 Cal.App.3d 792, 802, citations omitted.) Defendant Capitulo argues that Plaintiff has failed to specifically identify the statute or enactment that creates government liability and/or a statutory duty to support these causes of action. In response, Plaintiff relies upon the same arguments he made in opposing the demurrers to the Third Amended Complaint. Plaintiff points to the fact that the 4AC cites to Government Code section 815.2. That provision states: A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative. (Gov't Code, § 815.2, subd. (a).) However, Section 815.2 creates a basis to place liability upon a public entity for the acts or omissions of their employees. It does not create a basis for liability upon the employee. Here, the 4AC contains no allegations that Defendant Capitulo is a public entity or that Defendant Capitulo is liable for the acts or omissions of her employees. Plaintiff also cites to Government Section 820, which does apply to the employees of a public entity: "Except as otherwise provided by statute (including Section 820.2), a public employee is liable for injury caused by his act or omission to the same extent as a private person." (Gov't Code, § 820, subd. (a).) However, as the court previously ruled, the 4AC does not contain sufficient allegations to show that Defendant Capitulo is liable "to the same extent as a private person"
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		for intentional infliction of emotional distress, conversion, or trespass to chattels. The elements of a cause of action for intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress from the defendant's outrageous conduct. (<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050-1051.) The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages. (<i>Lee v. Hanley</i> (2015) 61 Cal.4th 1225, 1240.) Finally, the elements of a cause of action for trespass to chattels are (1) the plaintiff's possession of the property, (2) the defendant's intentional interference with the plaintiff's use of the property, (3) without the plaintiff's consent, and (4) damages. (<i>Thrifty-Tel, Inc. v. Bezenek</i> (1996) 46 Cal.App.4th 1559, 1566-1567.) While the 4AC mentions a conversation that Plaintiff had with Defendant Tiffany Williams (Defendant Williams) and attaches communications between Plaintiff and Defendant Williams and Defendant Capitolo, (see 4AC, ¶¶ 11, 51, Exh.s D-E, G), the 4AC does not contain any allegations that Defendant Capitolo engaged in any extreme or outrageous conduct, converted Plaintiff's property, or interfered with Plaintiff's use of his property As the court previously noted in sustaining the demurrers to the Third Amended Complaint, the communications attached to the 4AC merely informed Plaintiff that records had been destroyed or redacted — i.e., the communications responded to Plaintiff's inquiries. There are no allegations of fact to show that Defendant Capitolo destroyed the records or that any alleged destruction was outside the scope of employment or against policy. In short, the 4AC does not allege any actions taken by Defendant Capitolo that would support a cause of action for intentional infliction of emotional distress, conversion, or trespass to chattels. The court will sustain the demurrer to the 2nd, 4th, and 5th Causes of Action as to Defendant Capitolo. <u>3rd Cause of Action (Negligence)</u>
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		This cause of action is asserted against all Defendants. "The elements of a cause of action for negligence are well established. They are '(a) a <i>legal duty</i> to use due care; (b) a <i>breach</i> of such legal duty; [and] (c) the breach as the <i>proximate or legal cause</i> of the resulting injury.'" (<i>Evan F. v. Hughson United Methodist Church</i> (1992) 8 Cal.App.4th 828, 834, quoting 6 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 732, pp. 60-61, italics original.) "Duty 'is an essential element' of the tort of negligence." (<i>Melton v. Boustred</i> (2010) 183 Cal.App.4th 521, 529, quoting <i>Potter v. Firestone Tire & Rubber Co.</i> (1993) 6 Cal.4th 965, 984.) "The existence and scope of duty are legal questions for the court," (<i>Merrill v. Navegar, Inc.</i> (2001) 26 Cal.4th 467, 477), which the court makes on a case-by-case basis, (see <i>Isaacs v. Huntington Mem'l Hosp.</i> (1985) 38 Cal.3d 112, 124.) Here, the 4AC alleges that "defendants had a statutory duty to preserve Serette's death investigatory files." (4AC, ¶ 60.) However, the 4AC fails to state the basis of this duty. The 4AC cites to Government Code section 815.6, (see <i>id.</i>, ¶ 61), but that provision only states that: Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty. (Gov't Code, § 815.6.) However, neither the 4AC or Plaintiff point to any "enactment" that required Defendants to preserve the investigatory files. The 4AC also points to Civil Code section 1714(a). (See <i>id.</i>, ¶ 61.) That provision only states the general rule of negligence that "[e]veryone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the
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		management of his or her property or person" (Civil Code, § 1714, subd. (a).) It says nothing about a duty to preserve investigatory files. The 4AC does assert that, based "on the Breach of Contract allegation below," there exists "a contractual duty to preserve Serette's death investigatory files." (<i>Id.</i>, ¶ 60, bold original.) However, as the court has determined previously and determines again below, Plaintiff's breach of contract claim fails as well. In any case, the economic loss rule bars the recovery in tort for breach of a duty based purely on contract, (<i>Robinson Helicopter Co., Inc. v. Dana Corp.</i> (2004) 34 Cal.4th 979, 988 ["[T]he economic loss rule provides: [W]here a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only 'economic' losses."].) The court will sustain the demurrer to the 3rd Cause of Action. <u>6th Cause of Action (Breach of Contract)</u> The court previously overruled Defendant OC's and Defendant OCSD's demurrer to the 6th Cause of Action, (see ROA #337), and they do not seek here to challenge the 6th Cause of Action here. However, Defendant Capitulo does demur to the 6th Cause of Action of the 4AC. While Supreme Court has determined that a tort claim for spoliation of evidence may not be brought in this state because there is no general tort duty to preserve evidence, it has recognized that a duty to preserve evidence may exist independent of general tort law: We observe that to the extent a duty to preserve evidence is imposed by statute or regulation upon the third party, the Legislature or the regulatory body that has imposed this duty generally will possess the authority to devise an effective sanction for violations of that duty. To the extent 3rd parties may have a contractual obligation to preserve evidence, contract remedies, including agreed-upon liquidated damages, may be available for breach of the contractual duty.
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		(<i>Temple Community Hospital v. Superior Court</i> (1999) 20 Cal.4th 464 477.) As the Court of Appeal noted, “[a] contractual remedy may give rise to some of the same burdens and costs as would a spoliation tort remedy, but we cannot negate a contractual obligation based on policy considerations other than specific grounds such as illegality (Civ. Code, §§ 1598, 1599, 1608, 1667) and unconscionability (Civ. Code, § 1670.5).” (<i>Coprish v. Superior Court</i> (2000) 80 Cal.App.4th 1081, 1092.) The Court of Appeal also has stated that the duty to preserve evidence may arise not only from contract, but also from promissory estoppel. (See <i>Rosen v. St. Joseph Hospital of Orange County</i> (2011) 193 Cal.App.4th 453, 461 [“[I]f the defendant enters upon an affirmative course of conduct affecting the interests of another, he is regarded as assuming a duty to act, and will thereafter be liable for negligent acts or omissions”].) Therefore, the court will consider whether the 4AC properly makes out a cause of action for breach of contract, which “is comprised of the following elements: (1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to plaintiff.” (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1388.) The court also will determine whether the 4AC states the elements of a promissory estoppel claim, which are: “(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) his reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.” (<i>Laks v. Coast Fed. Sav. & Loan Ass’n</i> (1976) 60 Cal.App.3d 885, 890.) Here, the 4AC fails to allege the Defendant Capitulo entered into a contract with Plaintiff. The 4AC does plead that “[t]he agents of Defendant Orange County, including Tiffany Williams, Jessica Capitulo, and other DOES, assured that Orange County and Orange County Coroner’s office would retain Serette’s files for Plaintiff Albert Hughes III.” (4AC, p 81.) The fact that the 4AC alleges that Defendant Capitulo was acting as the agent of Defendant OC and that Defendant Capitulo promised that Defendant OC and the Orange County Coroner’s office (and not Defendant Capitulo herself) would retain the investigatory files, makes it clear
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		that Defendant Capitulo was acting in her capacity as an employee and/or agent of Defendant OC or Defendant OCSD. Thus, the 4AC contains no allegations to support a promissory estoppel claim against Defendant Capitulo. In other words, the 4AC fails to plead that Defendant Capitulo made a clear and unambiguous promise that she would take any action (or refrain from taking any action). The court will sustain the demurrer to the 6th Cause of Action as to Defendant Capitulo. <u>Uncertainty</u> "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty "are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) "[A] demurrer for uncertainty will not be sustained where the facts claimed to be uncertain or ambiguous are presumptively within the knowledge of the demurring party." (<i>Ching v. Dy Foon</i> (1956) 143 Cal.App.2d 129, 136.) "[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend." (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695.) Defendants argue that the 4AC is uncertain as to Defendant Capitulo because it fails to allege whether Plaintiff is bringing this action against Defendant Capitulo in her official or personal capacity. However, in light of the fact that the court has sustained the demurrer as to all claims asserted against Defendant Capitulo, it is not necessary for the court to address this issue, except to state that, to the extent Plaintiff amends the complaint, he should be mindful of the need to be clear whether Defendant Capitulo is being sued in her official or personal capacity. <u>Leave to Amend</u>
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		"It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) 1227.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) The trial court properly sustains a demurrer without leave to amend where plaintiff fails to meet its burden. (<i>Jensen v. Home Depot</i> (2018) 24 Cal.App.5th 92, 97.) "[N]otwithstanding the liberal policy favoring amendment of complaints, upon sustaining a demurrer to a first amended complaint, the court may deny leave to amend when the plaintiff fails to demonstrate the possibility of amendments curing the first amended complaint's defects." (<i>Hedwall v. PCMV, LLC</i> (2018) 22 Cal.App.5th 564, 579.) Plaintiff has requested leave to amend the 4AC. However, with respect the 1st, 2nd, 4th, and 5th Causes of Action, Plaintiff has made multiple attempts to state a viable cause of action and has failed each time. Nor does Plaintiff propose any specific amendments that would cure the deficiencies in these causes of action. Therefore, the court will deny leave to amend as to the 1st, 2nd 4th, and 5th Causes of Action. However, with respect to 3rd and 6th Causes of Action, this is the first time the court has sustained a demurrer to these causes of action and Plaintiff has not had a prior opportunity to amend. Thus, the court will grant leave to amend as to the 3rd and 6th Causes of Action. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial
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		court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.”].) <u>Motion to Strike</u> Defendants Orange County’s, Orange County Sheriff’s Department’s, and Jessica Capitulo’s Motion to Strike Punitive Damages to Plaintiff’s Fourth Amended Complaint is GRANTED with 15 days leave to amend. If Plaintiff Albert Hughes III does not amend the 4th Amended Complaint within the period of time stated above, Defendants Orange County and Orange County Sheriff’s Department shall file an answer or other pleading in response to the remaining cause of action of the 4th Amended Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j).) <u>Pending Motion</u> Defendant Orange County (Defendant OC), Defendant Orange County Sheriff’s Department (Defendant OCSD), and Defendant Jessica Capitulo (Defendant Capitulo) move to strike the requests for punitive damages contained Paragraphs 1, 49, and 83 of the Fourth Amended Complaint for Damages (4AC) filed by Plaintiff Albert Hughes III. <u>Timeliness of Reply</u> As an initial matter, Plaintiff objects that Defendants’ reply was filed late. (See ROA #590.) However, Defendants’ reply papers were filed and served on May 22, 2026, which is 5 court days before the hearing and therefore timely. (See ROA #586; Code Civ. Proc., s 1005, subd. (b) [“All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing.”].) Further, Plaintiff does not point to any prejudice that he suffered. Therefore, the court will overrule the objection and consider Defendants’ reply papers. <u>Standard for Motion to Strike</u>
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		A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) However, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).) “In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation.” (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Striking Punitive Damages</u> To obtain punitive damages, a plaintiff must plead and prove one of the following: malice, oppression, or fraud. (See Civil Code, § 3294, subd. (a).) “Malice” is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful
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		and conscious disregard of the rights or safety of others." (Civil Code, § 3294, subd. (a)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civil Code, § 3294, subd. (a)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civil Code, § 3294, subd. (a)(3).) In order to survive a motion to strike, a complaint must not only allege in general terms oppression, fraud, or malice, but also plead ultimate facts in support. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim."], citations omitted.) Conduct carried on with a willful and conscious disregard of the rights or safety of others, but that is not "despicable," will not support an award of punitive damages. (<i>College Hospital Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 725.) "Despicable conduct" refers to circumstances that are so vile, base, or contemptible that it would be looked down on and despised by reasonable people. (<i>Ibid.</i>; <i>Scott v. Phoenix Schools, Inc.</i> (2009) 175 Cal.App.4th 702, 715.) Such conduct has been described as "having the character of outrage frequently associated with crime." (<i>Scott v. Phoenix Schools, Inc., supra</i>, 175 Cal.App.4th at p. 715.) "Consequently, to establish malice, 'it is not sufficient to show only that the defendant's conduct was negligent, grossly negligent or even reckless.'" (<i>Bell v. Sharp Cabrillo Hospital</i> (1989) 212 Cal.App.3d 1034, 1044, quoting <i>Flyer's Body Shop Profit Sharing Plan v. Ticor Title Ins. Co.</i> (1986) 185 Cal.App.3d 1149, 1155.) "The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages. . . . Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210, citations and quotation marks omitted.) In addition, to recover punitive damages against a
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		corporate defendant based on the acts of its employee, the plaintiff must plead facts showing that the employer "had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or [wrongful] act must be on the part of an officer, director, or managing agent of the corporation." (Civil Code, § 3294, subd. (b).) The court previously granted Defendant OC's and Defendant OCSD's motion to strike the allegations regarding and prayer for relief for punitive damages without leave to amend. (See ROA #336.) Therefore, it is improper for Plaintiff to reassert these allegations and request against Defendant OC and Defendant OCSD in the 4AC. For this reason, the court will grant the motion to strike as to Defendant OC and Defendant OCSD. With respect to Defendant Capitulo, the court has sustained the demurrer as to every cause of action asserted against her. Thus, there is no cause of action asserted against Defendant Capitulo upon which a request for punitive damages may be premised. The court will grant the motion to strike as to Defendant Capitulo as well. <u>Leave to Amend</u> In ruling on a motion to strike, the court employs the same liberality to amend as used for demurrers. As long as there is a reasonable possibility that plaintiffs can cure the defects, leave to amend is appropriate. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 168; <i>Price v. Dames & Moore</i> (2001) 92 Cal.App.4th 355, 360.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.)
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		The trial court properly sustains a demurrer without leave to amend where plaintiff fails to meet its burden. (<i>Jensen v. Home Depot</i> (2018) 24 Cal.App.5th 92, 97.) "[N]otwithstanding the liberal policy favoring amendment of complaints, upon sustaining a demurrer to a first amended complaint, the court may deny leave to amend when the plaintiff fails to demonstrate the possibility of amendments curing the first amended complaint's defects." (<i>Hedwall v. PCMV, LLC</i> (2018) 22 Cal.App.5th 564, 579.) Plaintiff has requested leave to amend the 4AC. Plaintiff proposes to add a reference to Civil Code section 3294, and a conclusory allegation that Defendants acted in a malicious, oppressive, and fraudulent manner. However, Plaintiff's additions do not include any <i>ultimate facts</i> that would support the award of punitive damages. Further, the only claims that Plaintiff could assert against Defendants, after amending the complaint in response to the demurrer, are the 3rd Cause of Action for negligence and the 6th Cause of Action for promissory estoppel. It is unclear how Plaintiff could justify punitive damages on the basis of either of those causes of action. (See <i>Krusi v. Bear, Stearns & Co.</i> (1983) 144 Cal.App.3d 664, 680 ["[M]ere negligence, which — even if gross, or reckless — cannot justify punitive damages."]; <i>CalFarm Ins. Co. v. Krusiewicz</i> (2005) 131 Cal.App.4th 273, 277 ["Punitive damages are not recoverable under a claim of promissory estoppel."].) Therefore, the court will deny leave to amend as to allegations regarding and prayer for relief for punitive damages. Defendants shall give notice of these rulings.
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